License agreement of the Software to the IMAS Users Institute

PREAMBULE

This Agreement is concluded under the license Agreement n°CJ 2017-669/L29499 between the CEA and the ITER Organization, which allows the CEA to provide the ITER Organization and the users of the IMAS suite the Software.

The Licensee shall be deemed as having accepted the terms and conditions of this Agreement upon the occurrence of the first of the following events:

- (i) loading the Software by any means, notably, by downloading from IMAS Repository;
- (ii) the first time the Licensee exercises any of the rights granted hereunder.

ARTICLE 1- DEFINITIONS

For the purpose of this Agreement, when the following expressions commence with a capital letter, they shall have the following meaning:

Agreement:	means this agreement, and any appendices and amendments thereto.
Licensee:	means the Software user(s) having accepted the Agreement.
Software:	means the software, in present and future versions, in its Object Code form and Source Code form and its documentation, when the Licensee accepts the Agreement.
Object Code:	means the binary files originating from the compilation of the Source Code.
Source Code:	means all the Software's instructions and program lines to which access is needed to modify the Software.
Derivative Work(s):	means the incremental work constituting enhancements, improvements, and developments, together with interfaces and modifications to the Software itself or to the Source Code, in whole or in part, manuals, specifications, and related written material, as well as secondary works deriving directly from the modification of the Software.
Repository:	means a storage location, managed by the ITER Organization under a version control system, from which the Software may be retrieved and installed on a computer.
Pull Request:	means a request to integrate a derivative work into the official version of the software.

ARTICLE 2 – EFFECTIVE DATE AND TERM

The Agreement shall become effective on the date when it is accepted by the Licensee as set forth in the preamble. The Agreement shall remain in force for the duration of the license agreement granted to the ITER Organization.

ARTICLE 3 - SCOPE OF RIGHTS GRANTED

3.1 Right of use

The Licensee is authorized to use the Software, free of charge, for fusion R&D purposes and/or for the development of Derivative Works which shall be submitted to the Repository, and with the terms and conditions set out below. This right comprises:

1. permanent or temporary reproduction of all or part of the Software by any or all means and in any or all form.
2. loading, displaying, running, or storing the Software on any or all medium.
3. entitlement to observe, study or test its operation so as to determine the ideas and principles behind any or all constituent elements of said Software. This shall apply when the Licensee carries out any or all loading, displaying, running, transmission or storage operation as regards the Software, which it is entitled to carry out hereunder.

3.2 Entitlement to develop the Software

The Licensee shall be entitled to translate, adapt, arrange or modify the Software for the sole purpose of the creation of Derivative Works to be submitted to the Repository and for fusion R&D.

The Licensee is authorized to make any or all modification, adaptation to the Software provided that it includes an explicit notice that he is the author of said modification and indicates the date of the creation thereof.

The Licensee undertakes not to use all or part of the Software to provide services to third parties or for any advertising or commercial use.

The Licensee undertakes to inform the CEA of all modifications made on the Software, and to transfer to the CEA the source code of the Software thus modified or the Derivative Works free of charge.

Any use not expressly authorised by the Agreement or by law is prohibited.

The Licensee expressly agrees not to assign, transfer or convey to a third party, with or without consideration, the user right granted hereunder.

ARTICLE 4 - INTELLECTUAL PROPERTY

4.1 Derivative Work(s)

In consideration of the access right to the Software granted to the Licensee within the framework of the present Agreement and the free right of use it for its own R&D activities, the Parties undertake that the CEA shall be deemed to be owner of any Derivative Works developed by the Licensee and submitted to the Repository.

For that purposes, the licensee assigns, on a non-exclusive basis and free of charge, to the CEA any patrimonial rights on the Derivative Works so that the CEA become sole owner on the Derivative Works.

The rights assigned include the right to reproduce, execute, adapt, modify, distribute and incorporate in another work the Derivative Work, for any use, commercial use or not,

advertising use or not, for any and all countries and during the term of intellectual property protection specifying that:

- The right to reproduce notably includes the right to reproduce or have reproduced the Derivative Work, in whole or in part, separately or incorporated in one or several elements, for any (regardless of the) destination, by any or all means, in any or all form, and on any or all format, existing now or in the future, including but not limited to paper, computer, magnetic, optical, video, numerical, on-line data processing or electronic format, in so many copies CEA will deem it necessary.

- The right to execute notably includes the right to publicly execute or have executed whole or a part of the Derivative Works, or their secondary exploitations, by any or all present or future means of communication, that notably means the public or private display, broadcasting whether by hertzian way, cable distribution, satellite transmission and numerical network, the analogical, numerical and/or on-line data processing transmission or all the public or private, national or international telematic, telecommunication and electronic transmission networks, for any public or private, internal or external, national or international performance, in the specialized or common canal of broadcasting.

- The right to adapt notably includes the right to translate or have translated the Derivative Works, in other computer program languages, to perform corrections, adaptations, assemblies and modifications necessary to exploit in a normal way and promote the said Derivative Works. It also includes the right to use, for the needs of the CEA, extracts of the Derivative Works, or elements which have been used to reproduce, perform and/or commercialise them in a composite work.

- The right to distribute notably includes the right to market whole or a part of the Derivative Works, for payment or free of charge basis, even to lend, rent or sale it, by means and formats, existing now or in the future, and this for public without any limitation.

The CEA will cite the Licensee as the author of the Derivative Works in the documentation and in publications.

4.2 The Software

The CEA remains the solely owner on the Software.

ARTICLE 5 - RIGHTS OF USE

5.1 Rights of use of CEA

The CEA is free to use the Derivative Works developed by the Licensee, for all use, commercial use, advertising use or not, for all countries and during the term of intellectual property protection.

The CEA is free to exploit the Software and/or the Derivative Works developed by the Licensee for all use, commercial use, advertising use or not, for all countries and during the term of intellectual property protection.

5.2 Rights of use for the Licensee

Nevertheless, the CEA undertakes to grant to the Licensee a free right to use the Derivative Works, without any limitation of duration, including the right to reproduce, to adapt, to modify and to include the said Derivative Works in other software tool.

The CEA grants to the Licensee which accepts a non- exclusive and royalty free license for all the duration of this Agreement to use the Software and exclusively for fusion R&D.

ARTICLE 6 - PUBLICATION

Publications of all types (course reports, these, conference presentations, articles…) dealing with results obtained through use of the Software and/or its Derivative Works must cite the reference publication of the Software, which is provided in the Repository.

ARTICLE 7 – FEEDBACK

In consideration for the rights granted hereunder, the Licensee agrees to use its best efforts to inform the CEA, free of charge and within a reasonable period of time, of its experience in connection with use of the Software, including, but not limited to, any errors or defects detected, inconsistencies between the program and the associated documentation, restrictions to the Software's applications not mentioned in the associated documentation and any Derivative Works that could be made.
Moreover, the Software authors of the CEA shall systematically be put as reviewer of any Pull Request, to the "master" branch, which represents the official version of the Software created by the Licensee.

ARTICLE 8 – WARRANTY IN RESPECT OF THE SOFTWARE

The Licensee hereby recognizes that the Software is experimental software and that the current state of scientific and technical knowledge at the time of its release does not allow testing or verifying all possible uses or detecting the existence of any defects.

The Licensee hereby recognizes that the Software is supplied "as is" by the CEA, without any warranty whatsoever, express or implied, in particular without any warranty as to its merchantability, secure or innovative nature and fitness for a particular use.

The CEA does not warrant that the Software is error-free, or will operate without interruption, or that it will be compatible with the Licensee's equipment and software configuration or that it will meet the needs of the ITER Organization.

CEA does not expressly or tacitly warrant that the Software do not infringe any third party intellectual property right relating to a patent, software or any other property right.

ARTICLE 9 – ASSOCIATED SERVICES

Technical support and maintenance services on the Software are not included in the Agreement. The Licensee may request services that will be accepted or rejected by the CEA at its sole discretion, depending on means (personnel, financial) at the date of request. Upon CEA's acceptance, it will send to the Licensee an estimate. If it is accepted by the Licensee, the Parties will execute a separate document.

ARTICLE 10 – LIABILITIES

The CEA shall not be liable for any direct, indirect, special or consequential damages in connection with or related to the use and/or performances of the Software. The CEA's liability cannot be incurred by reason of (i) damages arising out of the non-performance, in full or in part, of its obligations by the Licensee, or (ii) indirect damages, even if the CEA knew of the possibility of the occurrence of such damages. The Parties expressly agree that any financial or business loss (including without limiting to lost data, lost profits, loss of customers or orders, loss of earnings, commercial disturbances) or any lawsuit directed against the Licensee by a third party, constitutes indirect damages for which no remedies are available.

ARTICLE 11 - TERMINATION

11.1 In the event of a breach by the Licensee of its obligations hereunder, the CEA may automatically terminate this Agreement thirty (30) days after notice has been sent to the Licensee and has remained ineffective.

11.2 A Licensee whose Agreement is terminated shall no longer be authorized to use, modify the Software.

11.3 This Agreement automatically expires with no formalities at the expiry of the validity of the licence Agreement between the CEA and the ITER Organization unless its validity has been extended by written agreement.

ARTICLE 12 - GOVERNING LAW and LITIGATIONS

This Agreement is governed by and construed in accordance with French law.

The Parties agree to endeavor to seek an amicable solution to any disagreements or disputes that may arise out of or in connection with the Agreement. Failing an amicable solution within two (2) months of the date on which they arise, disagreements or disputes shall be referred to ICC by the more diligent Party.

ARTICLE 13 - MISCELLANEOUS

13.1 The Parties shall not be liable for any breach of one of their obligations arising out of circumstances outside of their control, such as strikes, exceptional weather conditions, acts of war, terrorism, riots, fires, natural disasters, malfunction or interruption of means of communication or telecommunication, including networks.

13.2 No failure, by either of the Parties, even if repeated, to assert one or more provisions of the Agreement, may be construed in any circumstance as implying a waiver by the Party concerned of its right to assert said provision(s) subsequently.

13.3 Under no circumstance may this Agreement and/or the rights set forth herein be transferred or assigned by the Licensee.

13.4 In the event one or more provisions of this Agreement were to conflict with a statute or legislative provision, existing or future, such statute or legislative provision shall prevail, and the Parties shall make the necessary amendments so as to comply with such statute or provision. All other provisions shall remain in effect.